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BEFORE THE IOWA BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF:

James Copley, Ph.D.
License No. 301-00619
Respondent.

Case No. 97-016

SETTLEMENT AGREEMENT
AND FINAL ORDER

COMES NOW the Iowa Board of Psychology Examiners (Board) and James Copley, Ph.D., (Respondent) and pursuant to Iowa Code sections 17A.10(2) and 272C.3(4) (1997) enter into the following Settlement Agreement and Final Order.

1. Respondent was issued license number 301-00619 to practice psychology in Iowa on May 11, 1990 and Respondent's license is current.

2. On or about December 5, 1997 the Board, upon a finding of probable cause, filed a Statement of Charges in this case, alleging that Respondent had engaged in acts violative of the Board's ethical rules and other rules governing the practice.

3. The Board has jurisdiction over the parties and the subject matter.

4. Execution of this Settlement Agreement and Final Order constitutes resolution of this contested case. By executing this Settlement Agreement and Final Order, Respondent expressly waives all rights to a hearing on the charges contained in the Statement of Charges and waives any objection to this Settlement Agreement and Final Order.

5. Respondent is freely and voluntarily entering into this agreement and he agrees that the State's attorney may present the agreement to the Board.

6. This Settlement Agreement and Final Order is subject to approval of the Board. If the Board fails to approve this agreement, it shall have no force or effect to either party.

7. The Board's approval of this Settlement Agreement and Final Order shall constitute the resolution of a contested case proceeding and shall be a FINAL ORDER of the Board.

8. This Settlement Agreement and Final Order is a public record available for inspection and copying in accordance with the requirements of Iowa Code Chapter 22.

9. The terms and conditions imposed by this Settlement Agreement and Final Order shall become effective as of the date approved by the Board and the parties agree that upon the satisfactory completion of the terms and conditions imposed herein, the Respondent's license shall be restored to its full privileges.

10. Respondent admits that, had this case proceeded to hearing, the State would have presented evidence to establish that Respondent engaged in acts inconsistent with the Ethical Principles of Psychologists and the Board's administrative rules.

11. Respondent agrees that dual relationships with patients and sexual harassment of employees, if proven in an evidentiary hearing, violate the Ethical Principles of Psychologists, violate the Board's administrative rules, and constitute acts harmful and detrimental to the public.

12. This Settlement Agreement and Final Order shall be part of the permanent record of the Respondent and shall be considered by the Board in determining the nature and severity of any

disciplinary action to be imposed in the event of any future violations.

13. In the event Respondent violates or fails to comply with any of the terms of this Settlement Agreement and Final Order, the Board may initiate appropriate action to revoke or suspend Respondent's license or to impose other licensee discipline in accordance with Iowa Code section 272C.3(2)(a).

IT IS HEREBY ORDERED:

Iowa Board of Psychology Examiners license number 301-00619 is suspended indefinitely subject to the following terms and conditions:

1. Respondent's license shall be suspended until each of the following has been certified to the Board:

a. The Respondent's treating sources, Drs. Greenfield and Ortega, shall each certify to the Board that the Respondent has completed a course of treatment and that problems for which the Respondent was treated do not impair his ability to safely and competently engage in the practice of psychology.

b. The Respondent shall also complete an examination and assessment with Gary Schoener, M.A., a psychologist licensed in the State of Minnesota, who may be assisted by Dr. Harvey Joanning in the performance of certain aspects of the assessment and examination. Following this examination and assessment, Mr. Schoener shall file a report with the Board certifying that Respondent has completed the examination and assessment required by this order and further certifying that the Respondent's return to

the practice will not affect the public health, safety or welfare. Said examination shall be at the Respondent's expense.

2. Upon satisfactory certification to the Board that the Respondent may safely and competently practice psychology as specified in 1., a. and b. above, Respondent's license to practice psychology in Iowa shall be restored however it shall be on probation for a period of two years.

3. During the period of probation, Respondent agrees that his practice in psychology shall be supervised by either Dr. Harvey Joanning, Professor and Clinical Director of the Marriage and Family Therapy program at Iowa State University, or a licensed psychologist approved by the Board. Respondent agrees that he shall secure an approved supervisor prior to recommencing his practice in psychology and the Board agrees that it shall timely review all requests for approval. Said supervision shall be consistent with the degree of supervision provided to a graduate student in psychology and shall include the tape recording of all sessions for review by the supervisor, weekly case reviews with the supervisor, review of clinical records, and discussion of practice and ethical issues as they arise. The Respondent's supervisor shall file monthly reports with the Board and shall immediately report to the Board any violations of the Ethical Principles of Psychologists or the Board's administrative rules committed by the Respondent.

2. Respondent shall comply with the Ethical Principles of Psychologists as specified in the Board's administrative rules and

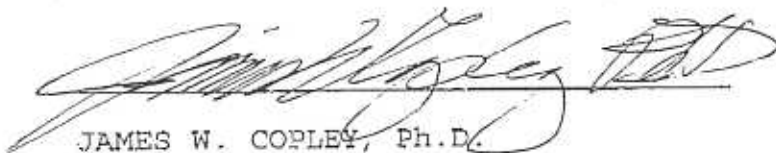
shall comply with all rules promulgated by the Board.

3. Respondent shall successfully complete a three-semester-hour university graduate course in ethics. This course shall be approved by the Board.

4. After successful completion of the graduate course in ethics, the Respondent shall be required to take and successfully pass a written ethics exam approved by the Board. The Respondent shall be required to pay the costs of the exam.

5. During the duration of the terms and conditions imposed by the order, Respondent agrees to make available to the Board any and all records requested for review.

6. Respondent agrees to appear before the Board prior to the completion of the period of probation in order to discuss his compliance with this agreement.


JAMES W. COPLEY, Ph.D.

9/29/98
Date:

This Settlement Agreement and Final Order is approved by the Iowa Board of Psychology Examiners on October 2, 1998.


Iowa Board of Psychology Examiners

BEFORE THE IOWA BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF:

)
) Case. No. 97-016
)

JAMES W. COPLEY, Ph.D.

)
)
) License No. 301-00619,

)
)
) STATEMENT OF CHARGES
)

Respondent.

TO THE ABOVE-NAMED RESPONDENT:

The Iowa Board of Psychology Examiners has jurisdiction over this matter pursuant to Iowa Code chapters 17A, 154B, and 272C (1993), (1995), and (1997).

Licenses issued by the Board are subject to the laws of the State of Iowa and to the administrative rules of the Board.

Respondent James W. Copley, Ph.D., was at all times during the following events licensed to practice psychology. Respondent was issued license number 301-00619 to practice psychology in the State of Iowa on May 11, 1990, as recorded in the permanent records in the office of the Board, and his license is current until June 30, 1998.

Respondent's address as reported to the Board is 416 Douglas Ave., Suite 205, Ames, Iowa, 50010.

COUNT I

Respondent is charged with violating Iowa Code section 272C.10(3) and 645 Iowa Administrative Code sections 240.212(1)(c) and 240.212(14) by willfully engaging in unethical conduct or conduct harmful or detrimental to the public and by failing to comply with the *Ethical Principles of Psychologists and Code of Conduct of the American Psychological Association (Code of Conduct)*, incorporated by reference in the aforementioned rule. Specifically, Respondent failed to comply with sections 1.11 and 1.14 of the *Code of Conduct* when he engaged in unwanted physical advances against at least two employees and when he engaged in acts constituting sexual harassment.

CIRCUMSTANCES

1. Employee #1, a minor resident of Story County, Iowa, was employed by the Respondent in July 1997.

2. On or about July 24, 1997, Employee #1, while working at the Respondent's office, was approached by the Respondent and asked to enter his office.

3. On or about July 24, 1997 and while in his office, the Respondent committed an assault on Employee #1.

4. As a result of the assault on Employee #1 committed by the Respondent on or about July 24, 1997, the criminal charge of

Assault with the Intent to Commit Sexual Abuse is now pending against the Respondent in the Iowa District Court for Story County.

5. Employee #2, an adult resident of Story County, Iowa, was employed by the Respondent from at least May 1996 through July 1997.

6. On multiple occasions during the months of January and February 1997 and occasionally during the months of March through July 1997, and while employed by the Respondent, Employee #2 was subjected to unwanted physical contact and advances committed by the Respondent.

7. Throughout the course of her employment, Respondent subjected Employee #2 to jokes of a sexual nature, sexual bantering, remarks regarding her body and physical appearance and subjected Employee #2 to a hostile work environment.

COUNT II

Respondent is charged with violating Iowa Code section 272C.10(3) (1994) and 645 Iowa Administrative Code sections 240.212(1)(c), 240.212(6), 240.212(7)(f), 240.212(14) and section 1.14 and 4.05 of the *Code of Conduct* by willfully engaging in unethical conduct or conduct harmful or detrimental to the public,

by engaging in practices which impair his ability to safely and skillfully practice the profession, and by engaging in sexual intimidation and a sexual relationship with a client, patient #1.

CIRCUMSTANCES

1. Patient #1, an adult resident of Story County, Iowa, was treated by the Respondent from at least April 1994 through May 1994.

2. While treating Patient #1 and while in therapy sessions conducted in his office, Respondent subjected Patient #1 to acts of unwanted physical advances and sexual intimidation.

3. While treating Patient #1 and while engaged in therapy sessions in his offices, Respondent initiated sexual relations with the Patient #1. Respondent hugged and kissed Patient #1, fondled her breasts and exposed his penis to Patient #1.

4. Respondent has engaged in conduct providing the Board with jurisdiction to take disciplinary action.

FINDING OF PROBABLE CAUSE

On November 20, 1997, the Iowa Board Psychology Examiners found probable cause to file this Statement of Charges and the Order which accompanies this Statement of Charges and to order that a hearing be set in this case.

Executed this 5 day of DECEMBER, 1997.

A handwritten signature in dark ink, appearing to be 'RDJ', is written over a horizontal line.

Robert D. Jones, Ph.D., Board Chair

Iowa Board of Psychology Examiners

BEFORE THE IOWA BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF:

)
) Case No. 97-016
)

JAMES W. COPLEY, Ph.D.,
License No. 301-00619

)
) ORDER OF SUMMARY
) SUSPENSION AND ORDER
) FOR HEARING
)

Respondent.

On November 20, 1997, the Iowa Board of Psychology Examiners, (Board), having been presented with evidence which established probable cause to believe that James Copley, Ph.D., (Respondent), is unable to practice psychology with reasonable skill and safety as alleged in the Statement of Charges, **FOUND** that Respondent's repeated departures from the standards governing the practice and his assaults upon employees and one patient constitutes an immediate threat to the public health, safety and welfare. The Board **FOUND** that the Respondent poses an immediate and present danger to his patients and the public and that Board action to protect the public health, safety, and welfare was warranted.

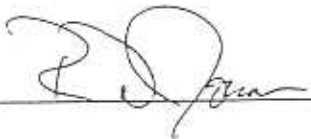
IT IS HEREBY ORDERED that, until further order of the Board, pursuant to the provisions of section 17A.18(3) of the 1997 Code of Iowa, the Respondent's license to practice psychology, number

301-00619, issued May 11, 1990, is hereby summarily suspended. A hearing on the order of summary suspension and statement of charges is set for 9:00 a.m. on April 10, 1998. The hearing will be held in Room 318 of the Hotel Fort Des Moines, Des Moines, IA.

Criminal assault charges have been filed against the Respondent in the Iowa District Court for Story County. Those criminal charges involve some of the same factual allegations as those contained in the attached Statement of Charges and the Respondent's criminal case is still pending as of the date of this Order. The Board recognizes that the pendency of the criminal trial raises a potential constitutional impediment to an administrative hearing and hereby agrees to grant any request for a continuance filed by the Respondent in which the constitutional impediment is raised.

IT IS FURTHER ORDERED that the license suspension as outlined herein shall become effective immediate upon service of a copy of this order on the Respondent. Service of this order and statement of charges shall be by U.S. restricted certified mail, return receipt requested, or in the manner of service of an Original Notice.

IOWA BOARD OF PSYCHOLOGY EXAMINERS



Robert Jones, Ph.D.

Dated: DECEMBER 5, 1997